Forum:	Legal Committee (GA6)
Issue:	Defining the scope of digital sovereignty under international law
Author:	Sotiria Davaki
Position:	Co-Chair

Personal Introduction

Dear Delegates,

My name is Sotiria Davaki. I am 16 years old and an IB2 student at Athens College (HAEF). It is my utmost honour to serve as this year's co-chair of the Legal Committee.

This journey of mine started when I was in ninth grade, and ever since then, I have been able to learn the importance of participating in such conferences. That includes broadening your horizons, enhancing your skills and understanding of topics, growing both socially and personally, meeting new people, building meaningful friendships, and, most importantly, enjoying yourself through a rich and educational experience.

During the conference, I will try my best to help everyone become more confident in what they believe and want to achieve and to acknowledge the importance of expressing your own values, beliefs, and ideas. I promise you that we will have a memorable and enjoyable conference.

In this study guide, you will read information about the topic that will be useful to know during our conference's lobbying and debating. However, I strongly encourage you to do your own research, find your own solutions, and understand your delegation's position. If you have any questions, don't hesitate to reach out to my email:

sotiriadavaki@gmail.com

I cannot wait to meet everyone and to work with all of you!

Sincerely,

Sotiria Davaki

Introduction

As the world has been increasingly digitalised, the question of who controls cyberspace has become one of the most pressing issues in international law. The notion of digital sovereignty, which can be broadly defined as the ability of states, organizations, and other significant stakeholders to maintain control over their digital assets, infrastructure, and technologies, has become a central pillar of national security and global governance. Nonetheless, no universally accepted legal definition or dedicated binding international framework exists to regulate its scope.

The rapid expansion of the internet and the emergence of powerful digital technologies, such as artificial intelligence or telecommunications infrastructure, have fundamentally changed traditional notions of state sovereignty. The boundaries between national jurisdiction and the global digital environment remain deeply contested, as questions regarding mass surveillance and non-state actor involvement arise. At the core of the challenge of defining digital sovereignty lies the tension between state authority and control and open, globally connected, and lawful access to the internet. Major actors such as the United States, the European Union, and China have adopted different approaches to this debate, reflecting the diversity in legal, political, and economic frameworks and priorities. As differences revolve around the degree of state control and interference, respect for democratic values, and informational flows, states pursue domestic policies with limited coordination with the rest of the international community. Therefore, the creation of an internationally accepted definition of digital sovereignty and the adequate approaches to it is both essential and challenging.

Defining the scope of digital sovereignty under international law thus extends beyond legal and technical expertise. The issue is heavily influenced by political priorities, as it requires the international community to grapple with questions about data governance, cybersecurity, technological dependence, and the rights of states and individuals[1]. As emerging technologies continue to reshape the digital environment, the urgency of establishing clear, internationally agreed principles continues to grow. The absence of such a framework leaves nation-states vulnerable to cyber threats, legal uncertainty and the unchecked power of foreign governments and technology corporations.

[1] Novikov, Yevhen. (2024). Digital sovereignty: conceptual challenges and constitutional implications. Constitutional and legal academic studies. 61-69. 10.24144/2663-5399.2024.1.08.

Key Terms and Definitions

Artificial Intelligence (AI)

"Set of technologies that empowers computers to learn, reason, and perform a variety of advanced tasks in ways that used to require human intelligence."[2]

AI extends beyond a state's ability to control emerging technologies and raises the question of how digital sovereignty can coexist with technological dependence on foreign states.

Cyberattacks can test the boundaries of external threats and potential violations of state sovereignty. International law is relevant to state sovereignty, responsibility and, in certain circumstances, the use of force.

Cyberattacks

"The deliberate attempt to gain unauthorized access to computer networks, systems or digital devices."[3]

Cybersecurity

"The practice of protecting people, systems and data from cyberattacks by using technologies, processes and policies."[4]

Cyberspace

"The interconnected digital landscape formed by global networks, databases and information systems."[5]

Because it crosses national borders and evolves rapidly, cyberspace is the digital environment where digital sovereignty acts. International law must determine how traditional territorial sovereignty applies to digital systems.

[2] Google Cloud. "What Is Artificial Intelligence (AI)?" *Google Cloud*, Google, 2025, cloud.google.com/learn/what-is-artificial-intelligence.

[3] IBM. "Cyberattack." *Ibm.com*, 15 Aug. 2021, www.ibm.com/think/topics/cyber-attack#498277090.

[4] Jonker, Alexandra, et al. "Cybersecurity." *Ibm.com*, 13 June 2025, www.ibm.com/think/topics/cybersecurity#7281535.

[5] "Cyberspace." *Dictionary.net*, 2026, www.dictionary.net/dictionary/cyberspace

Digital Sovereignty

"The ability of significant actors such as an organization, sector, or nation to maintain control over its digital assets, technologies, and operation."[6]

Gross Domestic Product (GDP)

"Gross Domestic Product is the total market value of the goods and services produced by a country's economy during a specified period of time. It includes all final goods and services—that is, those that are produced by the economic agents located in that country regardless of their ownership and that are not resold in any form."[7]

GDP can indicate the different economic capacities of states. Thus, when considering digital sovereignty under international law, it is important to consider states' economic capacity to develop and maintain independent digital infrastructure and technologies.

State Sovereignty

"A sovereign state is defined as a political entity that has sovereign authority and self-determination over its internal and external affairs. This concept is characterized by four commonly cited criteria: a defined territory, a permanent population, a government, and the capacity to enter into relations with other states. "

By recognizing a state's authority over matters within its jurisdiction, state sovereignty provides the legal foundation for digital sovereignty.

Operational sovereignty

"The ability to independently manage and control your IT systems and digital infrastructure without relying on foreign entities or outside providers."[8]

Operational sovereignty provides another factor that needs to be taken into consideration before applying international law: to what extent states have the practical capacity to exercise legal authority effectively.

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[6] "What Is Digital Sovereignty? A Practical Guide | SAP." *Sap.com*, 2026, www.sap.com/resources/what-is-digital-sovereignty.

[7] Bondarenko, P. (2024, March 6). Gross Domestic Product (GDP) Definition | Britannica Money. Britannica. https://www.britannica.com/money/gross-domestic-product

[8] *EUROPEAN COMMISSION DIRECTORATE-GENERAL FOR DIGITAL SERVICES Luxembourg Cloud Sovereignty Framework Version 1.2.1 -Oct. 2025*. (n.d.). Retrieved July 8, 2026, from https://commission.europa.eu/document/download/09579818-64a6-4dd5-9577-446ab6219113_en

Technical Sovereignty

"Technical or technological sovereignty is a nation's ability to build and control its own vital digital technologies while protecting privacy, data laws and democratic values."[9]

Similarly to the above, technical sovereignty defines the dimension of digital sovereignty. It contributes to how much access and development of technologies is needed for a state. In other words, it categorizes how much a state can operate with or without foreign technological dependence.

Background Information

Digital Sovereignty

The term "digital sovereignty" has been used by governments to protect their citizens and businesses from the multiple challenges to self-determination in the digital sphere. Over the last decade, the term digital sovereignty has developed into a widely discussed political concept with significant traction. Its importance extends to major world and emerging powers, private organizations and even Indigenous populations because they seek to establish their own views on the concept and enforce them through technical arrangements. Most importantly, digital sovereignty enables stakeholders to govern their data, systems, and infrastructure in alignment with their specific needs for security, compliance, and operational systems.

For major powers such as the US and China, and for the EU, digital sovereignty asserts national interests, reducing technological dependencies and controlling information flows. The EU, for instance, views it as a tool for strategic autonomy, while China uses it to prevent foreign interference and manage information within its borders. The growing emphasis on digital sovereignty reflects the rapid digital transformation and expansion of the internet's global infrastructure, which, at first glance, appears to create complexities to the traditional idea of state sovereignty. A sovereign state refers to a political entity that has complete autonomy and self-determination over its internal and external affairs. In more depth, the evolving growth of digital networks was not compatible with the principles of a sovereign state. This prediction, however, was not seen. Instead, governments adapted by developing legal and technical mechanisms to regulate the digital sphere and enforce national laws online, demonstrating the states retained significant authority over cyberspace despite the internet's global nature. The most recent legal case exemplifying the power to retain authority

[9] *Questions and answers on the Technological Sovereignty Package*. (2026b). European Commission - European Commission. https://ec.europa.eu/commission/presscorner/detail/en/qanda_26_1188

over the digital environment was back in May 2025, when Ireland's Data Protection Commission fined TikTok 530 million euros. The fine concerned infringements of GDPR transparency requirements and unlawful transfers of EEA users' personal data to China without ensuring essentially equivalent protection under the General Data Protection Regulation (GDPR).

As more issues rise from technological development, such as cybercrime, misinformation, and privacy concerns, states have started to view digital sovereignty as essential for protecting national security, economic prosperity, and citizens' rights[10]. Specifically, cybersecurity governance has started to implement regulatory frameworks by which all actors coordinate to manage cyber risks. To understand digital sovereignty governments should also consider two dimensions: operational and technical sovereignty.

Operational Sovereignty

Operational sovereignty concerns who controls, operates, maintains, and governs digital systems[11]. It is what establishes who can access the digital environment and under what conditions. Only approved personnel can handle administration and maintenance with required security clearance. Thus, this approach helps businesses to maintain transparency and continuity of the company and spot inefficiencies, i.e., disaster-recovery plans[12]. In comparison, operational sovereignty narrows down the broad goal of digital sovereignty. It ensures that the safeguards of digital sovereignty are exercised in practice while ensuring that digital systems used in enterprises operate not only according to their own security but also the government's requirements[13].

Technical Sovereignty

Technical or technological sovereignty is the ability of a community to implement political and social priorities without being hindered by inadequate or lacking control of technology[14]. In other words, technical sovereignty focuses on the architecture and local control planes that

[10] *Digital sovereignty and cybersecurity governance | information security management | information systems | applied sciences | topics | nature index*. (2025). NatureIndex; Nature Index. https://www.nature.com/nature-index/topics/l4/digital-sovereignty-and-cybersecurity-governance

[11] "What Is Digital Sovereignty? A Practical Guide | SAP." *Sap.com*, 2026, www.sap.com/resources/what-is-digital-sovereignty.

[12] Flinders, M. (2024). What is data sovereignty? | IBM. In *www.ibm.com*. https://www.ibm.com/think/topics/data-sovereignty

[13] Flinders, M. (2024). What is data sovereignty? | IBM. In *www.ibm.com*. https://www.ibm.com/think/topics/data-sovereignty

[14] EUREL. (2025). *Study on technological sovereignty: Methodology and recommendations*. https://www.eurel.org/resource/blob/2108492/03f491c010202c9d181f2e58f8de90d1/study-on-technological-sovereignty--1--data.pdf

manage digital platforms. In this case, technical sovereignty provides the technical capabilities that enable digital sovereignty. Digital sovereignty is the broader goal of preserving autonomy, control, and governance over a state's or organization's digital technologies, infrastructure, software, hardware, and technical expertise necessary to enable the autonomy[15]. Thus, without technical sovereignty, digital sovereignty remains difficult to achieve because reliance on foreign technologies limits independent decision-making and control[16].

Historical Background

The term "digital sovereignty" has its origins in the 1990s. Though not widely used at the time, its foundations can be traced particularly to the mid-1990s to mid-2000s in China, with the debates over information and network sovereignty. Increasingly, the concept became an increasingly prominent issue as it raised questions about whether states should retain sovereign authority over information flows and digital networks within their borders. China introduced a new concept of cyber sovereignty, arguing that every state should have the right to regulate its own cyberspace according to its national laws and political priorities.

Digital sovereignty started to expand into a major political issue during the 2010s[17]. This shift was mainly driven by a combination of technological, economic, and geopolitical developments especially for the European Union (EU).

The notion of digital sovereignty has raised strong concerns in the EU regarding the economic and social influence of non-EU technology companies that threaten EU citizens' control over their personal data and limit not only the attempt at growth for the EU's high-tech companies but also the ability of national and EU rule-makers to enforce their laws. Thus, during Ursula von der Leyen's 2019–2024 term as President of the European Commission, she noted digital policy as a key political priority to achieve sovereignty in critical areas. A significant milestone in this transition was the adoption of the General Data Protection Regulation (GDPR) in 2016, which became fully applicable in 2018. Far from being a framework, the GDPR was a message that the European Union was intent on being a routine authority over the global digital economy. The Regulation has an extraterritorial scope, i.e. it applies to organizations established not only in the European Union, but also in specified circumstances to organisations outside the EU that offer goods or services to, or monitor the behaviour of,

[15] Couture, Stéphane, & Toupin, Sophie. (2019). *What does the notion of "sovereignty" mean when referring to the digital?* New Media & Society, 21(10), 2305–2322.

[16] Couture, S., & Toupin, S. (2018). What does the concept of "sovereignty" mean in Digital, network and technological sovereignty? *SSRN Electronic Journal*. https://doi.org/10.2139/ssrn.3107272

[17] Julia Pohle and Thorsten Thiel, "Digital Sovereignty," *Internet Policy Review* 9, no. 4 (2020).

individuals in the EU. In so doing, the GDPR reinforced individuals' rights over their personal data, while also strengthening the Union's capacity to influence international standards for digital governance, and is indicative of the EU's increasing regulatory influence beyond its territorial boundaries—a phenomenon commonly referred to as the "Brussels Effect."

To highlight why the 2010s are considered the critical point of digital sovereignty not only in Europe, but as a more international concept, it's important to analyze the influential catalyst of the 2013 disclosure of classified information by Edward Snowden. Edward Snowden, a former contractor for the CIA, revealed the US National Security Agency's (NSA) scandal: collecting records from the telephones of tens of millions of Americans without consent. In fact, it had tapped directly into the servers of the biggest internet businesses such as Facebook, Google, Microsoft, Apple etc. PRISM, a surveillance programme launched in 2007, enabled the NSA to obtain specified communications data from participating US technology providers under legal authority. Through the exposure, Snowden intensified the international concerns regarding the extent to which governments, organizations, and citizens could maintain control over their digital information when relying on foreign-owned technological infrastructures. Specifically, the disclosures exposed the vulnerabilities created by dependence on external cloud providers, telecommunications networks, and data-processing systems, as sensitive information could potentially be accessed or monitored by foreign authorities under their national security frameworks.

Before Snowden, many governments and organizations saw digital systems as tools of economics and technology. The disclosures revealed that data being stored in or flowing through foreign infrastructures could be accessed by foreign governments. This shifted the narrative around digital dependence from a business issue to a sovereignty and national security one[18]. Furthermore, the EU was heavily reliant on US technology companies for cloud computing, online platforms, and digital services[19]. The Snowden revelations have heightened European concerns that data on European citizens could be accessed under US surveillance laws and increased pressure for better European data governance. This helped build political momentum for initiatives such as the General Data Protection Regulation (GDPR)[20].

[18] (PDF) the consequences of Edward snowden NSA related information disclosures. (n.d.-a). In *ResearchGate*. Retrieved July 26, 2026, from https://www.researchgate.net/publication/275019554_The_Consequences_of_Edward_Snowden_NSA_Related_Information_Disclosures

[19] Mass surveillance: EU citizens" rights still in danger, says parliament | news | european parliament. (2015). In *www.europarl.europa.eu*. https://www.europarl.europa.eu/news/en/press-room/20151022IPR98818/mass-surveillance-eu-citizens-rights-still-in-danger-says-parliament

[20] GDPR. (2018). General data protection regulation (GDPR). In *GDPR*. https://gdpr-info.eu/

Defining the Debate of Digital Sovereignty

Despite its growing significance on international policymaking, digital sovereignty remains a highly contested and evolving concept[21]. Governments, international organizations and other actors haven't accomplished the establishment of a universally accepted definition or foundation to accommodate each state's legal, political, and economic priorities.[22] At its core, the debate surrounding digital sovereignty reflects governments' efforts to balance the benefits of an open and internationally connected digital ecosystem with the need to protect national security, cybersecurity, economic competitiveness, and democratic governance.[23] Moreover, the term becomes more nebulous as technology evolves, which means that new definitions are getting introduced and have emerged in related areas[24], i.e., AI. Thus, the central tension lies between establishing an open and globally connected internet and big powers increasingly seeking greater authority over critical digital infrastructures, data flows, and emerging technologies to safeguard their strategic interests. Mainly these powers are the USA, China, and Europe[25].

[21] jbatchik. "Digital Sovereignty: Europe's Declaration of Independence?" *Atlantic Council*, 14 Jan. 2026,www.atlanticcouncil.org/in-depth-research-reports/report/digital-sovereignty-europes-declaration-of-independence/.

[22] Julia Pohle and Thorsten Thiel, "Digital Sovereignty," *Internet Policy Review* 9, no. 4 (2020).

[23] jbatchik. "Digital Sovereignty: Europe's Declaration of Independence?" *Atlantic Council*, 14 Jan. 2026, www.atlanticcouncil.org/in-depth-research-reports/report/digital-sovereignty-europes-declaration-of-independence/.

[24] Fleming, Sean. "What Is Digital Sovereignty and How Are Countries Approaching It?" *World Economic Forum*, 10 Jan. 2025, www.weforum.org/stories/2025/01/europe-digital-sovereignty/.

[25] Musoni, Melody, et al. Global Approaches to Digital Sovereignty Competing Definitions and Contrasting Policy. 2023.https://ecdpm.org/work/global-approaches-digital-sovereignty-competing-definitions-and-contrasting-policy

Country/bloc	Overall approach to digital sovereignty	Approach to personal data	Approach to non-personal data
U.S.	Does not adopt language of digital sovereignty, but has advocated for an open and unregulated cyberspace in which big tech plays a dominant role.	No unified approach to protection of personal data at the federal level; some states regulate personal data. The Clarifying Lawful Overseas Use of Data (CLOUD) Act authorises US authorities to demand access to data held by US companies overseas.	Free flow of both personal and non-personal data.
China	Promotes a government-led approach to digital sovereignty. Has put in place policies to control the internet.	Personal Information Protection Law (PIPL) has similarities with the EU's General Data Protection Regulation (GDPR) on extraterritorial application, principles on the processing of personal data, and rights of individuals. Additional requirements e.g. local storage of personal information by critical information infrastructure operators.	Non-personal data classified according to national security and Public Interest considerations. 2017 Cybersecurity Law and 2021 Data Security Law with specific requirements for security assessment before data is transferred abroad.
E.U.	Third way between the US (unregulated surveillance capitalism) and the Chinese (surveillance-heavy) models with a strong focus on individual rights.	Protection of personal data is a fundamental right with mandatory requirements under the GDPR for processing personal data. Externalisation of the GDPR as entities outside the EU/EEA apply these principles to retain access to EU data. Restrictions on transfers of personal data, and requirements on how personal data is treated once it has left the EU/EEA.	Free flow of non-personal data with rules on fair access, use of non-personal data, and mechanisms to increase data availability.

Figure 1: "How countries are taking different approaches to digital sovereignty and data"[26]

The figure above depicts how each major nation involved approaches the matter on three main ideas: a general approach to digital sovereignty, to personal data, and to non-personal data. This debate can be divided into two main perspectives: those who argue that strengthening digital sovereignty is necessary to protect national interests and those who warn that excessive state control may undermine the openness and interconnected nature of the internet.

[26] Musoni, Melody, et al. Global Approaches to Digital Sovereignty Competing Definitions and Contrasting Policy. 2023.https://ecdpm.org/work/global-approaches-digital-sovereignty-competing-definitions-and-contrasting-policy

In Favor of Strengthening Digital Sovereignty

Proponents of digital sovereignty contend that states must exercise greater control over digital infrastructures because technology has become essential to national security and social stability. Today's governments rely more and more on digital systems to operate critical sectors like healthcare, energy, finance, defence, or public administration. Thus, digital network vulnerabilities can directly jeopardize national security and the functioning of society. Governments also argue that more control of data and digital infrastructure is needed to protect the privacy of citizens and to ensure effective enforcement of domestic laws. The reliance on foreign technology firms has sparked fears over where data is stored, who can get access to it, and what legal regimes apply. This approach is demonstrated by the European Union's GDPR, which increases individual rights over personal data and places strict obligations on organizations that process data belonging to European citizens. From this perspective, digital sovereignty is considered a tool for the protection of states and individuals, promoting accountability, security and regulation in the digital world.

Against Strengthening Digital Sovereignty

Critics of digital sovereignty say that too much focus on national control over cyberspace could undermine the open, interconnected structure of the global internet and create barriers to international cooperation. The internet risks fragmenting into separate national or regional systems, sometimes referred to as a "splinternet,"[27] if countries adopt differing rules on data flows, digital infrastructure, and technology governance. This fragmentation may have negative consequences for cross-border trade, scientific collaboration, technological innovation, and the free flow of information, as it reduces interoperability between digital ecosystems[28]. Moreover, critics argue that digital sovereignty can serve as a veil for digital protectionism, where governments prioritize national technology companies or restrict foreign providers, potentially stifling competition and innovation[29]. This is particularly relevant in strategic sectors such as artificial intelligence, cloud computing, and telecommunications, where international cooperation and access to global markets are

[27] 3 Ways the 'splinternet' is damaging society | MIT sloan. (2023). In *mitsloan.mit.edu*. https://mitsloan.mit.edu/ideas-made-to-matter/3-ways-splinternet-damaging-society

[28] Stanislav Budnitsky. (2017). Milton mueller, will the internet fragment? Sovereignty, globalization, and cyberspace. *International Journal of Communication, 11*. https://www.researchgate.net/publication/402825747_Milton_Mueller_Will_the_Internet_Fragment_Sovereignty_Globalization_and_Cyberspace

[29] UNCTAD. (2021). Digital economy report 2021. https://unctad.org/system/files/official-document/der2021_en.pdf

essential for technological progress.[30] In addition, human rights groups have raised concerns that some countries may invoke digital sovereignty to justify increased state control over the online space, including censorship, surveillance, and restrictions on freedom of expression[31]. Therefore, critics emphasize that while states have legitimate interests in protecting their digital environments, sovereignty-based approaches must be balanced with commitments to an open, secure, and rights-based global internet.

Benefits of Digital Sovereignty

For citizens

Digital sovereignty helps create a safer and more trustworthy digital environment by giving governments greater control over how citizens' data is stored, processed, and protected while reducing any risks associated with foreign control over any sensitive digital infrastructure. The latter can be managed under any domestic or regional legal frameworks to avoid foreign dependence. Thus, citizens are protected from risks such as unauthorized surveillance, misuse of personal data, or conflicting foreign legislation.[32] In the European Union, digital sovereignty is closely linked to protecting fundamental rights, including privacy, freedom of expression, and the rule of law through legislation like the GDPR[33]. Moreover, sovereignty and autonomy from foreign digital infrastructure also strengthen public confidence in online services because citizens know that the institutions responsible can be trusted with their data under specific safeguards that can be challenged democratically[34].

[30] OECD. (2024). OECD digital economy outlook 2024: Volume 1. OECD Publishing. https://www.oecd.org/content/dam/oecd/en/publications/reports/2024/05/oecd-digital-economy-outlook-2024-volume-1_d30a04c9/a1689dc5-en.pdf

[31] OECD. (2024). OECD digital economy outlook 2024: Volume 1. OECD Publishing. https://www.oecd.org/content/dam/oecd/en/publications/reports/2024/05/oecd-digital-economy-outlook-2024-volume-1_d30a04c9/a1689dc5-en.pdf

[32] Between truth and power the legal constructions of informational CapitalismThe legal constructions of Informational capitalism. (n.d.-b). Retrieved July 27, 2026, from https://www.researchgate.net/publication/336780917_Between_Truth_and_Power_The_Legal_Constructions_of_Informational_CapitalismThe_Legal_Constructions_of_Informational_Capitalism

[33] GDPR. (2018). General data protection regulation (GDPR). In *GDPR*. https://gdpr-info.eu/

[34] Madiega, T. (2020, July). *Briefing EPRS ideas paper towards a more resilient EU*. https://www.europarl.europa.eu/RegData/etudes/BRIE/2020/651992/EPRS_BRI(2020)651992_EN.pdf

Digital sovereignty can also bring economic advantages to citizens. By investing in domestic technology companies, cloud infrastructure, artificial intelligence, and semiconductor manufacturing, governments can create new jobs in high-skilled industries. This encourages innovation, boosts the local digital economy, and makes it less likely that talent will move to countries with more advanced technology sectors[35]. As digital industries grow, they create more jobs in related sectors such as cybersecurity, software development, engineering and research.

For businesses

Digital sovereignty creates a more stable and predictable environment for businesses by reducing uncertainty surrounding data governance and digital regulations. Businesses that operate inside well-defined legal frameworks are aware of the standards that must be adhered to, where data can be stored and who can access it. Businesses may invest more confidently in long-term digital transformation programmes because of this legal transparency, which also reduces compliance risks.

Additionally, an autonomous digital ecosystem boosts competitiveness. Governments frequently encourage domestic innovation by funding advanced manufacturing, cloud services, cybersecurity, and artificial intelligence. By lowering reliance on a small number of foreign technology suppliers, these investments assist companies in implementing secure digital technologies. Stronger cybersecurity regulations also lessen the possibility of costly cyberattacks or service interruptions, enabling businesses to function more effectively and safeguard intellectual property.

Furthermore, countries with reliable digital infrastructure and transparent governance become more attractive destinations for both domestic and foreign investment. Investors are generally more willing to commit resources to markets where digital systems are secure, resilient, and governed by predictable regulations[36].

For governments

[35] European Commission. (2021). 2030 Digital compass: The european way for the digital decade. In *Europa.eu*. https://eur-lex.europa.eu/legal-content/EN/TXT/HTML/?uri=CELEX:52021DC0118

[36] "Questions and Answers on the Technological Sovereignty Package." European Commission - European Commission, 2026, ec.europa.eu/commission/presscorner/detail/en/qanda_26_1188

Digital sovereignty is essentially a national security and strategic autonomy issue for states. In order to run vital services like healthcare systems, tax administration, emergency response, elections, military communications, and energy networks, modern states mostly rely on digital infrastructure[37]. Governments may be more susceptible to supply chain breakdowns, cyberattacks, geopolitical tensions, or outside political pressure when these systems rely significantly on foreign-owned technologies or cloud providers[38]. Governments can lessen these strategic vulnerabilities while retaining more control over vital national infrastructure by building domestic capabilities.

Timeline of Events

Date	Description of Event
23 November 2001	Budapest Convention on Cybercrime[39] is adopted. It is a framework that allows parties of the agreement to create cooperation and relationships. Moreover, it criminalizes any conduct of illegal acts on the internet. The first-ever attempt to apply a legal framework for digital activity across borders.
1 June 2010	The white paper "The Internet in China" is issued by the state council of the People's Republic of China. It is an early official statement of China's position on internet governance and affirms that cyberspace falls under Chinese sovereignty. It also calls for international cooperation solely on the basis of state sovereignty.

37 Fleming, Sean. "What Is Digital Sovereignty and How Are Countries Approaching It?" *World Economic Forum*, 10 Jan. 2025, www.weforum.org/stories/2025/01/europe-digital-sovereignty/.

38 Fleming, Sean. "What Is Digital Sovereignty and How Are Countries Approaching It?" *World Economic Forum*, 10 Jan. 2025, www.weforum.org/stories/2025/01/europe-digital-sovereignty/.

39 "Budapest Convention - Cybercrime - Www.coe.int." *Cybercrime*, 2014, www.coe.int/en/web/cybercrime/the-budapest-convention.

June 2013	Edward Snowden is in Hong Kong when disclosures based on his NSA documents to journalists of "The Guardian."
24 June 2013	The UN GGE report (A/68/98) is introduced. It recognizes that international law, particularly the UN Charter, applies to state activities in cyberspace.
27 April 2016	The European Parliament and Council adopt the GDPR, whose goal is to enforce individuals' control and rights over their personal data and to amplify the rules for international business

Major Actors Involved

China

China is one of the nations most involved on the matter, because of its strategic competition with the US[40] over who has more control and power of global digital infrastructure. China promotes a government-led approach to digital sovereignty and views it as a matter of national security, political stability, and economic development.[41] Rather than supporting an open and borderless internet, China promotes a government-led model in which each state has the sovereign right to regulate, monitor, and control its own cyberspace according to national laws and priorities.[42]

[40] "State-Centric Formations of Digital Sovereignty." *Cambridge University Press EBooks*, 31 Dec. 2024, pp. 39–102, https://doi.org/10.1017/9781009531085.003.

[41] "State-Centric Formations of Digital Sovereignty." *Cambridge University Press EBooks*, 31 Dec. 2024, pp. 39–102, https://doi.org/10.1017/9781009531085.003.

[42] G. Farrell, H., & Silberstein, A. (2020). Weaponized interdependence: How global economic networks shape state coercion. *International Security*, *44*(1), 42–79. https://direct.mit.edu/isec/article/44/1/42/12237/Weaponized-Interdependence-How-Global-Economic

China was among the earliest nations to advocate state authority over internet governance. In fact, it promoted its first-ever vision and belief, the principle that states should exercise authority over the internet within their own borders and priorities during the international 2005 World Summit on the Information Society (WSIS). The summit was a pivotal moment not only for China but also for the globe. There, China articulated its position on state authority over internet governance, later commonly described as "cyber sovereignty", arguing that every country has the right to its own model of internet governance without foreign interference. Ever since then, China has repeatedly advocated this position in international forums such as the United Nations and the World Internet Conference, encouraging greater recognition of state authority over digital infrastructure and online content.

In addition, China has translated its principle inside its legislation and domestic framework. The Cybersecurity Law (CSL), which took effect in 2017, seeks to re-territorialise cyberspace and data flows and reflects a more exclusive and territorialized conception of cyber sovereignty and greater securitization of the internet. The law reflects a more territorial conception of digital sovereignty, emphasizing state control over data, networks, and information flows while strengthening the government's ability to monitor cyberspace in the name of national security.

Beyond its domestic policies, China has sought to shape global digital governance. Through the Digital Silk Road[43], a component of the Belt and Road Initiative, China exports telecommunications infrastructure, cloud computing services, surveillance technologies, and smart-city systems to dozens of countries.[44] Critics argue that this expands China's geopolitical influence and promotes its model of cyber sovereignty internationally, while supporters contend that it helps developing countries build digital infrastructure and narrow the digital divide[45].

[43] Council on Foreign Relations. (n.d.). *China's digital silk road*. Council on Foreign Relations; Council on Foreign Relations. Retrieved July 27, 2026, from https://www.cfr.org/china-digital-silk-road/

[44] Council on Foreign Relations. (n.d.). China's digital silk road. Council on Foreign Relations; Council on Foreign Relations. Retrieved July 27, 2026, from https://www.cfr.org/china-digital-silk-road/

[45] UNCTAD. (2021b). *Digital economy report 2021*. Unctad; United Nations Conference on Trade and Development. https://unctad.org/page/digital-economy-report-2021

As a result, China has become one of the principal advocates of a state-centric approach to digital sovereignty, standing in contrast to countries that favor a more open, multistakeholder model of internet governance.

European Union (EU)

The EU approaches digital sovereignty as a means of strengthening its strategic autonomy while simultaneously agreeing to an open, rules-based digital economy. Furthermore, it aims to reduce excessive dependence on foreign technologies, protect fundamental rights and ensure that critical infrastructure remains secure and resilient. According to the European Parliament, digital sovereignty reflects the EU's ability to retain control over its data, innovation capacity, and the enforcement of its own laws in the digital environment while promoting European values such as the rule of law, democracy, and privacy.

The Budapest Convention on Cybercrime is a Council of Europe treaty, opened for signature in 2001, aimed at harmonising cybercrime laws and improving international cooperation on cybercrime. By harmonizing cybercrime legislation and facilitating cooperation between states, the Convention contributes to protecting digital infrastructure and strengthening the resilience of cyberspace. Although it predates the widespread use of the term "digital sovereignty", it supports international cooperation against cybercrime; it was not designed to reduce dependence on foreign technology.

Moreover, the EU wants and attempts to develop a fair, competitive and secure digital environment through legislation. The Digital Services Act (DSA) strengthens the accountability of online platforms by improving transparency and protecting users from illegal content. Meanwhile, the Digital Markets Act (DMA)[46] addresses the market power of dominant digital companies to ensure fair competition within the European digital market. Together, these regulations demonstrate the EU's approach to digital sovereignty by combining consumer protection, market fairness and digital security under a common regulatory framework.

USA

The United States can be considered a legal risk to sovereignty because concerns are not primarily related to state control over the internet; it aims at the extraterritorial reach of US law over global digital infrastructure. Due to the global dominance of American technology

[46] European Commission. (2022). The digital markets act. In *digital-markets-act.ec.europa.eu*. https://digital-markets-act.ec.europa.eu/index_en

companies, foreign companies tend to depend on more US-based services, which creates legal risks regarding access to data, technological independence, and national security. The Foreign Intelligence Surveillance Act (FISA) provides legal procedures for certain foreign-intelligence surveillance, rather than unrestricted access to data held by US companies. Particularly, Section 702 permits the targeting of non-US persons reasonably believed to be located outside the United States, with the compelled assistance of electronic communication service providers, to acquire foreign intelligence information. This has sparked debates within international regions about whether reliance on US technology companies creates vulnerabilities to national sovereignty and privacy protections.

Additionally, because of the US's powers of sanction and the International Emergency Economic Powers Act (IEEPA) of 1977 , the President may, following a qualifying national emergency declaration, regulate or prohibit specified transactions involving foreign interests. As many global technology companies operate within or rely upon the US financial and legal system, American sanctions can influence access to digital services, technologies, and infrastructure beyond US borders. This demonstrates how control over technology and economic networks can become a tool of geopolitical influence.

Rwanda

Rwanda is one of the few cases of Less-Economically Developed Countries (LEDCs) that has attempted to gain greater control over its digital development and reduce technological dependence. Indeed, Rwanda has made significant progress in doing so. For example, the government-backed IremboGov platform has allowed citizens to access numerous public services, which further consolidated the control over the digital delivery of its own public services and improved efficiency and accessibility. In fact, more than 30 million transactions have reportedly been processed through Irembo, helping to reduce processing times for some government services. This demonstrates how domestic digital infrastructure can strengthen a state's practical digital sovereignty.

Despite its great effort of digital sovereignty, based on the World Bank, Rwanda still faces limitations: high cost of digital devices and services, unequal levels of digital access and dependence on private investment and external technology. A clear example of Rwanda's foreign dependence comes again from the World Bank. The Rwanda Digital Acceleration Project was approved for US$100 million in World Bank financing in 2021 to expand broadband access, improve digital public services and Rwanda's digital innovation system.

UN Documents and International Agreements

The UN GGE report (A/68/98)

The 2013 UN Group of Governmental Experts (GGE) report (A/68/98) presented consensus findings to guide Member States in their use of information and communications technologies. The document recognizes the importance of responsible state conduct and international cooperation in maintaining a safe digital environment. Specifically, it affirms that international law, particularly the UN Charter, applies to state activities in cyberspace. It discusses state sovereignty and responsible behaviour, without itself establishing binding obligations concerning cyber activities. Moreover, it proposes to strengthen confidence-building measures, exchange of information, and capacity-building initiatives to enhance global cyber stability and security. In addition, to recognize the evolving nature of cyber threats, the GGE framework seeks to consolidate international norms and multilateral dialogue by encouraging states to engage in continuous consultation to prevent conflict and foster trust across digital networks.

Global Digital Compact

Adopted by the UN General Assembly as part of the Pact for the Future, the Global Digital Compact was created in 2024 to aim for a more inclusive, safe and cooperative global digital environment. The agreement recognizes the critical contributions of the private sector, technical communities, researchers and civil society to digital cooperation. Specifically, its goal is to create a digital economy and spaces more inclusive. It calls upon making technologies more accessible, increasing investments in digital public goods and infrastructure. Moreover, it proposes to strengthen legal and policy frameworks for protection online while ensuring that the Internet remains open, global, stable and secure. In addition, to recognize the emerging issue of AI, the Compact wants to support and consolidate international data governance and AI by establishing international scientific panels and ensuring global AI policy dialogue. An example of such a panel could be the Independent International Scientific Panel on Artificial Intelligence formally established by the UN General Assembly (UNGA) in August 2025. What it does is it brings together 40 independent experts, selected by the General Assembly, to produce evidence-based assessments of the opportunities, risks and impacts of AI which are then used to inform international discussions on AI governance.

Tunis Agenda for the Information Society (2005)

The Tunis Agenda for the Information Society, adopted at the 2005 UN-led World Summit on the Information Society, was an important early attempt to address how the internet should be governed internationally.[47] It concentrated on issues such as internet governance, financing mechanisms and reducing the digital divide, while recognizing that governments, international organizations, businesses and civil society all have roles in the development of the information society. In relation to digital sovereignty, the Agenda is significant because it shows the early effort to balance the authority of individual states over digital matters with the need for international cooperation in a global internet system.[48]

Previous Attempts to Solve the issue

Chips Act 2.0 proposed on 3 June 2026

The proposed Chips Act 2.0 on 3 June 2026 serves as an update of the European Chips Act in 2023, introducing new measures to further boost the chips industry, reduce strategic dependencies and support advanced chip production. Building upon earlier foundational efforts, the updated framework aims to create a more resilient European semiconductor ecosystem by accelerating manufacturing capabilities for next-generation chips and streamlining investment in critical supply chains. Specifically, its goal is to strengthen industrial competitiveness and technological leadership across Member States. It calls upon increasing investments in research, expanding production facilities, and reinforcing international partnerships to secure chip access. Moreover, it proposes to establish dedicated crisis management mechanisms and monitoring tools to prevent supply chain disruptions. In addition, to address emerging technological demands, the proposal seeks to support domestic innovation and technical talent, ensuring that Europe remains a global player in advanced semiconductor manufacturing.

EU Declaration on Digital Rights and Principles

The European Declaration on Digital Rights and Principles for the Digital Decade (2022) sets out a non-binding political commitment to an open digital environment, respect for fundamental rights, the rule of law and democracy, inclusion, accessibility, equality,

[47] *WSIS: Tunis Agenda for the Information Society*. (2010). Itu.Int. https://www.itu.int/net/wsis/docs2/tunis/off/6rev1.html

[48] Balleste, R. (2012). Rising toward apotheosis: The deconstruction of the WSIS Tunis Agenda for the Information Society. *Pittsburgh Journal of Technology Law and Policy*, *12*, 181–216. https://doi.org/10.5195/tlp.2012.95

sustainability, resilience, security and a fair economy and society in the EU. The agreement recognizes the importance of placing people at the centre of technological progress while supporting digital cooperation across all sectors. Specifically, its goal is to foster an online environment where individual rights are protected and digital tools benefit everyone. It calls upon making digital public services universally available, enhancing public skills, and safeguarding democratic institutions against online threats. Moreover, it proposes to strengthen legal protections and environmental standards, ensuring that technology develops in a sustainable and ethical manner. In addition, to recognize the global scope of digital networks, the Declaration wants to promote European values internationally while encouraging continuous dialogue to build a secure, open, and trustworthy global digital space.

Possible Solutions

The Establishment of an International Legal Framework

The international community should develop a legal framework led by the UN that defines digital sovereignty and clarifies the rights and responsibilities of states in cyberspace. Currently, there are different understandings of digital sovereignty between countries. Some countries view digital sovereignty as the right to control national data, infrastructure and online content, while others emphasize the protection of digital autonomy in an open and interconnected Internet. This failure to find common ground causes uncertainty on issues such as cross-border data flows, cyber attacks and jurisdiction over foreign technology firms by governments. A common framework should recognize the legitimate right of states to protect their digital infrastructure and ensure that the exercise of digital sovereignty is consistent with international law, human rights standards and the obligation to prevent harmful cyber activities. This approach would result in greater stability, and would prevent digital sovereignty from being used as a pretext for excessive censorship, surveillance or cyber-aggression.

The Creation of International Standards for Cross-Border Data Governance

A big part of the battle for digital sovereignty is: Who owns the data? And what laws are in play when data crosses borders? Companies are increasingly storing and processing data across national borders, creating a clash of different national approaches. The EU focuses on protecting privacy. China stresses the state control of data. The US mostly favours open data flows to boost economic growth. Creating international standards could set common rules for data protection, cybersecurity and government access while allowing countries to maintain their own digital policies. More specifically, these standards could require states to follow

common levels of data protection, establish transparency over how data is collected and transferred, and limit governments' access to personal data. States could also establish that restrictions on data flows must be necessary and clearly justified while still allowing states to maintain their own digital policies

Strengthen Cybersecurity Cooperation and Digital Infrastructure Resilience

Better cooperation between states in tackling cybersecurity threats is an important step for the protection of digital sovereignty. Full technological independence is hard to come by because modern digital systems are so interlinked; countries must instead work on resilience, not full isolation. Governments could also enhance information-sharing mechanisms, establish common cybersecurity standards and collaborate to safeguard critical infrastructure such as healthcare systems, financial networks, energy supplies and government services. States can protect their national digital systems through cooperation against cyber threats, while recognising that cybersecurity challenges often transcend national borders.

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